

6. The Court shall issue the order after hearing.

14. 9:00 AM CASE NUMBER: N25-1849
CASE NAME: GARY DARTEZ VS. CITY OF ANTIOCH RENT PROGRAM
***HEARING ON MOTION IN RE: ORDER PRESERVING EVIDENCE**
FILED BY:
TENTATIVE RULING:

Petitioners Gary Dartez and Tamisha Latimore (“Petitioners”) filed a Motion for Order Preserving Evidence on January 14, 2026 (the “Motion for Order Preserving Evidence”). The matter was set for hearing on March 16, 2026.

Background

Petitioners seek an “Order Preserving Evidence to prevent further loss, alteration, or destruction of evidence material to this action and related proceedings.” See Motion for Order Preserving Evidence, p. 1 *et seq.*

Analysis

Failure to Properly Serve

First, Petitioner purported to serve the Motion for Order Preserving Evidence by mail on an apparent agent for service of process.

Respondent City of Antioch (the “City”) has already appeared in the matter through its counsel of record, the City Attorney and Meyers Nave. Service should have been done on the City’s counsel of record. Nonetheless, the City filed an Opposition.

For this reason alone, the Court would deny the motion.

Denial on the Merits

Second, even if properly served, the Court would deny the motion on the merits.

Petitioners reference the “Court’s inherent equitable authority, Code of Civil Procedure §§ 128(a)(1), 128(a)(4)” and *Williams v. Russ* (2008) 167 Cal.App.4th 1215 as the authority for the motion.

The *Williams* case dealt with a trial court’s findings that the evidence supported an inference that a client in a legal malpractice lawsuit had intentionally allowed material unfavorable to his claims to be destroyed. *Williams v. Russ* (2008) 167 Cal.App.4th 1215. The court upheld discovery sanctions for spoliation of evidence. *Id.* at 1228. The case has nothing to do with the Court’s authority to issue a “preservation order” to prevent the spoliation of evidence, especially as relates to a third party to the pending litigation. Nor do subsections (a)(1) or (a)(4) of Code of Civil Procedure section 128 related to authority to issue a “preservation order” to prevent the spoliation of evidence.

Nonetheless, the Court most certainly has authority to make orders for the preservation of relevant evidence in the parties’ possession for discovery purposes. See discussion in *Weil & Brown, et al., Cal. Prac. Guide: Civ. Pro. Before Trial* (The Rutter Group 2025), § 8:19.12; see *Northpoint Homeowners Assn. v. Superior Court* (1979) 95 Cal. App. 3d 241, 244 (“...the trial court has inherent power to make certain orders in furtherance of the discovery and presentation of evidence related to pending civil litigation.”)

However, Petitioners have failed to show that the Court ought to exercise such authority here by issuing

the requested preservation order.

Petitioners make reference to various things that they assert have happened since late 2025, apparently with respect to an eviction and their communications with “Respondent Redwood Property Investors III, LLC.” The records that they seek to preserve are described as records they believe to be related to their tenancy and appear to be records that would, if they exist, be primarily in the possession of Redwood Property Investors III, LLC. Although some categories of described records are more generalized.

To be clear, Redwood Property Investors III, LLC is not a respondent. The initiating Petition was filed by petitioners Gary Dartez and Tamisha Latimore (“Petitioners”) on September 17, 2025. A Verified First Amended Petition was filed on February 25, 2026. The Amended Petition seeks a writ of mandate to set aside an August 28, 2025 decision regarding “Petitioners’ rent petition, filed on May 21, 2025.” There are other causes of action alleged, including Declaratory Relief. **None of those causes of action is alleged as against Redwood Property Investors III, LLC.** Redwood Property Investors III, LLC is listed on the caption and described in the body of the First Amended Petition as the “Real Party in Interest.” Indeed, at Paragraph 12, Petitioner plead as much:

12. Redwood is named in this writ proceeding only as a real party in interest and affected participant in the underlying administrative matter, because the City’s challenged administrative actions and decision concern Redwood’s interests and submissions in that proceeding.

The Court is mindful of a pleading filed by Redwood Property Investors III, LLC entitled “Notice of Appearance” on March 3, 2026. The Court has reviewed its Opposition and, fundamentally, it makes the same observation that it is not a proper party to the present action.

If there is a dispute over retention or production of relevant records in relation to an eviction, then Petitioners’ remedy is to seek an order in the eviction action. Petitioners can raise the issue in any pending eviction action or else bring an appropriate action against Redwood Property Investors III, LLC if there is a basis for doing so.

Indeed, the Court does not conclude that it has any jurisdiction to issue an order requiring Redwood Property Investors III, LLC to do anything, much less preserve evidence.

Nor have Petitioners shown that the respondent City of Antioch (the “City”) has possession of records relating to the writ and other causes of actions pled in this case which are at risk of spoliation by the City.

Indeed, other than argument, no evidence is proffered by Petitioners in support of their motion. A “Notice of Additional Facts” is not a competent means of putting evidence before the Court on a motion. That document is not a declaration signed under penalty of perjury. Even if the Court’s considers the Verified First Amended Petition, which it has, no grounds appear for the requested order.

Disposition

The Court finds and rules as follows:

1. The Motion for Order Preserving Evidence is DENIED.
2. The Court shall issue the order after hearing.

**Law & Motion
Add On**

15. 9:00 AM CASE NUMBER: C24-01939

CASE NAME: NICKOLAI POPOV VS. ALEXANDER POPOV

***HEARING ON MOTION IN RE: SET ASIDE & VACATE JUDGMENT OF DISMISSAL ON THE GROUNDS OF UNDUE INFLUENCE & LACK OF CAPACITY**

FILED BY:

TENTATIVE RULING:

Plaintiff Special Administrator of the Estate of Nickolai F. Popov, Michael Popov “Special Administrator”), filed a Motion to Set Aside And Vacate Judgment Of Dismissal On The Grounds Of Undue Influence And Lack Of Capacity (“Motion to Vacate”) in this matter on April 14, 2025. The Motion to Vacate was initially set for hearing on August 04, 2025.

As noted in a prior tentative ruling, at the hearing on August 4, 2025, the Court continued this motion to November 10, 2025, after the probate hearing regarding the administrator of the Estate of Nickolai Popov on August 25, 2025, in a related Probate matter, Case No. P25-00516 (the “Probate Case”).

The Court later continued the hearing on Motion to Vacate (and another pending motion, the Motion to Stay by Alexander Popov) to January 26, 2026, until after the resolution of a Motion to Set Aside the Appointment of Special Administrator in the Probate Case set to be heard on December 16, 2025.

At the hearing on January 26, 2026, this Court again continued the Motion to Vacate until after the Probate hearing regarding the special administrator of the Estate of Nickolai Popov on January 27, 2026.

The Probate Court granted a temporary order assigning Michael Popov as Special Administrator due to the original order being set to expire and continued the Motion to Set Aside the Appointment of Special Administrator to January 27, 2026.

At the January 27, 2026, Probate hearing in The Probate Case, the Court stayed the case pending the ongoing criminal matter in Solano County (Solano County Case No. F25-01634) (the “Solano County Criminal Proceedings”), continuing the next hearing to August 4, 2026.

The Court finds that it is necessary and appropriate to stay this case considering the Solano County Criminal Proceedings and the ruling by the Court in the Probate Case.

The **Court GRANTS the Motion to Stay.**

The Court set a status conference regarding the status of the Criminal Proceedings and the Probate Case on August 08, 2026, at 8:30 am in Department 34.